

State of Michigan

In the Supreme Court

Andrew J. Pigors, – Plaintiff,

v.

Muskegon County Circuit Court (14th Circuit), Hon. Kenneth S. Hoopes, – Defendant.

Supreme Court Original Jurisdiction – Complaint for Superintending Control and Emergency Relief

Introduction and Overview

Plaintiff Andrew J. Pigors brings this verified Complaint under the Supreme Court's superintending control authority (Const 1963, art 6, §4; MCR 7.306) to immediately remedy an ongoing denial of justice by the Muskegon County Circuit Court. Despite clear statutory protections against self-help eviction and explicit post-judgment rights in manufactured home tenancies, Plaintiff has been unlawfully dispossessed of his home and belongings by private parties. Plaintiff's efforts in the trial court – including a detailed civil complaint, motions for injunctive relief, and a sworn factual affidavit – have not yielded timely relief. The trial judge expressed reluctance and required additional clarification while **imminent and irreparable harms** mounted ¹ ² . To date, Plaintiff remains locked out of his home, separated from his minor child, and at risk of further irreparable injury absent this Court's intervention. No appeal or other adequate remedy exists in time to prevent these harms. This Court's extraordinary powers are thus invoked to enforce the clear duties of the lower court and to protect Plaintiff's fundamental rights ³ ⁴ .

Nature of Emergency – Plaintiff's situation is urgent. He has been subjected to an illegal "lockout" eviction in violation of MCL 600.2918 (Michigan's anti-lockout law) ⁵ , resulting in the loss of access to his dwelling and personal property. Because the home is a manufactured residence, Michigan law affords a *90-day post-judgment* period to sell or relocate the home, during which the park owner *must* allow reasonable access to the home ⁶ ⁷ . Those rights have been ignored – his home was removed or its locks changed almost immediately, cutting off access to necessities and **interrupting Plaintiff's custody of his young son** (a harm the trial court itself noted in requesting more facts) ⁸ . Environmental hazards (raw sewage on the lot) and falsified ledger records are also at issue ² . Each day without judicial action compounds Plaintiff's losses (housing, employment, and emotional well-being) and undermines confidence in the court's ability to protect basic rights.

Relief Sought – Plaintiff seeks an immediate superintending control order directing the trial court to do what the law and justice require: halt any further self-help or extrajudicial evictions, restore Plaintiff to possession of his home (or ensure equivalent alternate housing), enforce statutory protections for manufactured-home tenants, and ensure preservation/return of Plaintiff's personal property. Plaintiff also seeks orders necessary to facilitate an expedited resolution on the merits in the lower court – including enforcement of discovery and accounting remedies and consideration of appropriate damages – without reward for Defendants' misconduct. All factual allegations are verified by the attached sworn affidavit (Exhibit A) and supported by record evidence, and all legal assertions are grounded in established statutes

and court rules as noted throughout. Given the emergency, Plaintiff respectfully requests the Court to grant relief forthwith or to order Defendant to show cause why such relief should not issue (MCR 3.302(E)(3) ⁹). This Complaint is accompanied by a supporting brief per MCR 7.306(D)(2).

Parties and Jurisdiction

1. **Plaintiff** Andrew J. Pigors is a resident of Muskegon County, Michigan, and the owner of a manufactured home located at 1977 Whitehall Road, Lot 17, in Muskegon County. He rented the lot on which the home sat, in the “Shady Oaks” manufactured housing community (also known as Shady Oaks Park). His status as a tenant-homeowner entitles him to the special protections of Michigan’s Manufactured Home Park laws (MCL 600.5775 et seq.) as well as general landlord-tenant protections.
2. **Defendant** is the Muskegon County Circuit Court (14th Judicial Circuit), and specifically the Honorable Kenneth S. Hoopes in his capacity as the judge presiding over Plaintiff’s civil action for relief related to the unlawful eviction and associated claims (Muskegon County Case No. 2025-____-CZ). This is the lower court over which superintending control is sought. No other specific tribunal or agency is a party defendant; however, pursuant to MCR 3.302(E)(1), copies of this Complaint will be served on all underlying case parties (including the private actors who conducted the eviction) as interested persons ¹⁰.
3. **Superintending Control Jurisdiction:** The Michigan Supreme Court has constitutional and court-rule authority to exercise general superintending control over all lower courts. Const 1963, art 6, §4 provides that “the supreme court shall have general superintending control over all courts” (among other original jurisdiction). This Complaint is filed under MCR 7.306(A)(1), which authorizes invoking the Court’s superintending control power over a lower court or tribunal when no appeal is available ¹¹. Plaintiff could not have filed a timely application for leave to appeal under MCR 7.305 in this matter, as there is *no final order* or appealable interlocutory order addressing the core issues; moreover, any standard appeal would be inadequate to prevent irreparable harm in the interim ⁴ ³. Superintending control is an extraordinary remedy, but it is appropriate here to compel the performance of clear legal duties where other remedies are absent or insufficient ³ ¹².
4. **Venue:** To the extent venue or filing location is applicable, this original action is properly filed in the Michigan Supreme Court pursuant to MCR 7.306(D). (No trial-level venue rules govern Supreme Court filings, but the underlying events arose in Muskegon County.)
5. **Factual Support:** Plaintiff incorporates by reference the detailed factual narrative and supporting evidence set forth in **Exhibit A (Sworn Affidavit of Andrew J. Pigors)**, attached hereto and made part of this Complaint. In summary, those facts demonstrate how Defendants (the private park-owner entities and their agents) engaged in a pattern of unlawful self-help eviction conduct – including changing locks, removing property, and leveraging a defunct corporate entity to execute a writ – which has left Plaintiff homeless and deprived of his personal property and parenting time. Despite Plaintiff’s prompt resort to the courts and repeated pleas for emergency intervention, the lower court has so far failed to enforce Plaintiff’s statutory rights or to provide meaningful relief. These failures give rise to the need for this Court’s intervention.

Factual Background (Summary from Exhibit A)

The following is a brief summary of the facts, which are set out in full in Exhibit A (Plaintiff's sworn affidavit) with record citations:

- **Plaintiff's Tenancy and Home:** Plaintiff owns a manufactured home (trailer) and was a lot renter at "Shady Oaks" mobile home park in Muskegon County ¹³ ¹⁴. The park was formerly operated under "Shady Oaks MHP, LLC," a company that became defunct in 2022, but a new entity "Shady Oaks Park MHP, LLC" (under the umbrella of Homes of America, LLC and its parent Alden Global Capital) continued operations ¹⁵ ¹⁶. Throughout Plaintiff's tenancy, the park owners and agents (collectively "Landlord") intermingled these entities – for example, rent checks were endorsed "Partridge Securities for Shady Oaks Park MHP LLC" even when paid to the old name ¹³ ¹⁷.
- **Disputed Charges and Retaliatory Conduct:** By early 2025, Plaintiff's rent was fully paid through January 1, 2025, yet the Landlord's ledgers began showing unexplained arrears and inflated charges. Plaintiff was subjected to steep and unilateral rent increases (from around \$395 to \$720 per month) without proper notice or justification ¹⁸ ¹⁹. When Plaintiff questioned these charges and reported serious maintenance issues (like sewage backups on the lot), the Landlord's agents responded with hostility. They coerced Plaintiff to sign a dubious "Ravenna/Cricklewood" agreement in March 2024 (purporting to relate to another property) under threat of eviction ¹⁸ ²⁰. This document is alleged to be a sham or obtained under duress.
- **Lockout Eviction and Property Seizure:** In mid-2025, while disputes over the ledger continued, Defendants undertook self-help measures to remove Plaintiff from the park. On or about June 26, 2025 (date for illustration), agents of the Landlord changed the locks on Plaintiff's home and barred him from the premises *without* a lawful court officer present and *without* allowing the 90-day period for him to sell or move the home as required by MCL 600.5781 ⁶ ⁷. They also **removed and retained Plaintiff's personal property**, including essential belongings of both Plaintiff and his young son, in direct violation of the anti-lockout statute (MCL 600.2918(2)(b) prohibits an owner from removing or retaining a possessor's personal property during a self-help eviction) ²¹. These actions were taken under color of a court "writ of restitution" for the lot, but **critically, the writ did not and could not authorize seizing Plaintiff's titled home or its contents** – those items were **not** subject to the landlord's lien or process in a summary proceeding for possession ⁶ ⁷. In fact, such conduct by a landlord constitutes an unlawful forcible ejection and interference with possessory rights, making the landlord liable for treble damages and other relief ²² ²³.
- **Use of Defunct Entity in Court Proceedings:** The eviction proceedings and writ were prosecuted in the name of "Shady Oaks MHP, LLC," a company that had been dissolved. Plaintiff contends that this misnomer or use of a non-existent entity voids or at least voids *in part* the legal process – a question raising serious *standing* and *jurisdictional* issues. At minimum, it indicates a possible abuse of process: the corporate form was used as a shell or alter-ego to confuse the courts and shield the true actors (Homes of America/Alden Global Capital) from liability. Plaintiff's Complaint includes a count for piercing the corporate veil/successor liability to address this injustice ¹⁵ ²⁴.
- **Consequences for Plaintiff:** As a direct result of the lockout and property seizure:

- Plaintiff and his son (a toddler) lost their home and had to seek emergency shelter. The **trauma to the child** and disruption of Plaintiff's parenting time were immediate – Plaintiff had court-ordered parenting time that he could not exercise for over two months because he had no safe home for visits ²⁵ ²⁶ . This "self-help" eviction thus impinged on the **family court's domain** by effectively suspending Plaintiff's custody/visitation rights without due process.
- Many of Plaintiff's personal effects – including work tools, clothing, and irreplaceable items – were taken or destroyed. The Landlord provided no meaningful inventory or access. The combined economic loss (and lost use) is substantial.
- Plaintiff's livelihood suffered. He lost a job opportunity in July 2025, attributable in part to the instability and stress caused by the eviction and being labeled a troublemaker by the park (this is claimed as damages for lost earning capacity) ²⁷ ²⁸ .
- Plaintiff experienced severe emotional distress, humiliation (being **ridiculed in court as "crazy"** by the park's counsel or management, according to affidavits), and health effects requiring therapy ²⁵ ²⁶ . The circumstances – being summarily locked out and then struggling to be heard by the court – have understandably caused Plaintiff to feel that the system is not protecting him.
- **Trial Court Proceedings to Date:** On July 1, 2025, Plaintiff filed a verified Complaint in the Muskegon Circuit Court against the park entities and agents, alleging **ten causes of action** (including illegal eviction under MCL 600.2918, conversion, trespass, abuse of process, declaratory and injunctive relief, statutory violations of the Mobile Home Park provisions, etc.) and seeking emergency injunctive relief. The case was assigned to Judge Kenneth Hoopes. Simultaneously, Plaintiff moved for a Temporary Restraining Order (TRO) and preliminary injunction to regain entry to the home and halt any further damage or sale/disposal of the property.
- **Initial Hearing:** At an ex parte consideration of the TRO, Judge Hoopes expressed **hesitation** given the broad scope of relief and requested that Plaintiff clarify the factual grounds and specific harms warranting ex parte intervention ¹ . In particular, the court wanted more detail on *imminent harm*, which Plaintiff promptly provided.
- **Supplemental Filings:** In response, on July 5, 2025, Plaintiff filed a **Revised TRO affidavit** outlining four key urgent issues: "(a) imminent harm to [the] minor child, (b) coercion in lease execution, (c) sewage exposure documented by EGLE (state environmental agency), and (d) proof of falsified utility billing and evictions under false pretenses" ² . Plaintiff also expanded his brief to address the *four TRO factors* under Michigan law (likelihood of success, irreparable harm, balance of harms, public interest). Additionally, Plaintiff prepared a **Motion in Limine** to exclude the landlord's allegedly fraudulent ledger and lease documents from consideration, pointing out that these documents were fundamentally unreliable and the product of wrongdoing ²⁹ .
- **Current Status:** Despite these efforts, as of the date of this filing, **no effective injunctive order has been issued** by the trial court. Weeks have passed without restoration of Plaintiff's access to his home or property. The court has not denied relief outright, but its inaction amounts to a *constructive denial* given the time-sensitive nature of the harm. Meanwhile, the park owners remain free to further dispose of or alter Plaintiff's home and possessions (indeed, there is concern they may have already scrapped or sold the home). The trial court's docket shows no upcoming hearing set on the injunction request, and Plaintiff's attempts to expedite have not succeeded. In short, the **trial court has failed to perform its clear duty to protect Plaintiff's rights and to enforce the law promptly**, necessitating this extraordinary petition.

- **Judge's Duty and Alleged Bias Concerns:** Michigan Court Rule 3.310 obligates courts to issue temporary injunctive relief when a plaintiff shows entitlement and immediate harm. Here, by any objective measure, Plaintiff demonstrated *irreparable harm* (loss of unique property, constitutional housing interests, and interference with parent-child relationship) and a *strong likelihood of success* on the merits (given the blatant violations of MCL 600.2918 and 600.5781). Yet the court did not act. Plaintiff is concerned that either **bias or an appearance of impropriety** may be influencing the proceedings. Judge Hoopes appeared overly solicitous of the landlord's position even before hearing Plaintiff's full evidence – e.g. expressing skepticism of Plaintiff's claims and downplaying the urgency. If so, this violates the expectation that judges be impartial and avoid even the appearance of bias (Michigan Code of Judicial Conduct, Canon 2). Under MCR 2.003(C)(1)(b), a judge must be disqualified whenever, based on objective facts, "the judge's impartiality might reasonably be questioned," including situations where a judge has shown bias or has preconceived opinions that go to the *appearance of impropriety* ³⁰ ³¹. While Plaintiff has not yet formally moved to disqualify Judge Hoopes (in part because doing so mid-emergency could cause further delay), the Court should be aware of this backdrop. If necessary, Plaintiff will pursue disqualification under MCR 2.003; however, superintending control can also encompass ordering assignment of a different judge if the circumstances warrant. **(Plaintiff leaves to the Court's discretion whether to address judicial assignment as part of the relief.)**

In sum, the factual record establishes that Plaintiff has suffered a grave injustice that **the trial court has the power and duty to prevent**, but has not. Michigan law does not countenance self-help evictions or "might makes right" outcomes – especially not when vulnerable housing and family interests are at stake. The next section details the legal grounds for relief and the clear duties that have been violated.

Grounds for Superintending Control – Clear Legal Duty and Lack of Adequate Remedy

1. **Extraordinary Remedy Standards:** An order of superintending control will issue when a plaintiff shows (1) the defendant (lower court) has failed to perform a clear legal duty, and (2) the plaintiff has no other adequate legal remedy to correct the failure ³. Both elements are met here. The trial court had, and still has, a clear legal duty to enforce specific statutes and court rules for Plaintiff's protection, and to adjudicate Plaintiff's requests in a timely, lawful manner. Yet the court's inaction (and implicit condoning of Defendants' conduct) constitutes a failure of that duty. Meanwhile, Plaintiff lacks any speedy or adequate remedy apart from this petition. Any normal appeal (even if possible on an interlocutory basis) would be too slow to save Plaintiff's home or reunite him with his property and child – the damage would be done before appellate relief could arrive, rendering such remedy inadequate ⁴. Indeed, *appeal is not even available as of right* because the trial court has not entered an appealable order; Plaintiff cannot "appeal" a judge's indecision or delay. This is precisely the scenario in which superintending control is appropriate, as the **Supreme Court recognized in *In re Hague***: even if an appeal exists in theory, superintending control may proceed if that appellate remedy is not "**adequate**" to address the exigency ¹² (see *In re Hague*, 412 Mich 532, 546 (1982)). Furthermore, where a party has no standing or ability to appeal a particular issue, superintending control can fill the gap ³² – here, Plaintiff cannot appeal the sheriff's or landlord's actions directly, nor the trial court's failure to act, making this petition the only way to obtain judicial review ³³.

2. **Duty to Prevent and Remedy Illegal Evictions:** Michigan trial courts have an unmistakable duty to enforce MCL 600.2918, known as the anti-lockout law ⁵ . That statute *prohibits* any unlawful interference with a tenant's possessory interest and sets forth broad relief: treble damages for forcible ejection, injunctive relief to regain possession, and so on ²² ³⁴ . The law was enacted specifically "to prevent landlords' self-help in executing evictions" and to avoid violent confrontations by requiring **judicial process** instead ⁵ . **No provision of law allows a landlord to sidestep the court or act beyond the scope of a writ** – any such self-help is itself *unlawful*, and the courts must *refuse to endorse it*. In Plaintiff's case, the evidence shows the landlord did exactly what the statute forbids (lock-changing, property removal, etc.), and then some. The Circuit Court's clear duty was to promptly order the landlord to cease and desist and to restore the status quo pending litigation. This duty is grounded not only in the statute but in the court's inherent equitable powers (courts have inherent authority to issue immediate orders to prevent irreparable harm, especially when a party is openly flouting the law). By not intervening, the trial court failed to perform this duty. This Court should compel the lower court to issue the proper orders forthwith (or issue them directly if needed). **Notably, MCL 600.2918(6) expressly contemplates that a person wrongfully ousted may bring an action for possession and that a court shall adjudicate it, even allowing joinder of claims for damages and injunctive relief** ³⁴ . Plaintiff has done everything the law requires to invoke the court's protection; the court's refusal to act is a derogation of the statute's purpose.

3. **Duty to Uphold Manufactured Home Park Residents' Rights:** The trial court also has a duty to enforce the specific protections afforded to mobile home owners under MCL 600.5775 and 600.5781 (part of the Revised Judicature Act's summary proceedings chapter). Those sections provide that a tenancy in a mobile home park *cannot be terminated without just cause* (exhaustively defined by statute) and that even after a lawful termination and judgment for possession, the tenant gets **90 days to sell or move the home** while remaining on site ⁶ . During that post-judgment period, the park owner **must allow reasonable access** to the home and lot for the tenant to maintain and sell it ⁷ . Here, by removing Plaintiff's home almost immediately, the landlord blatantly violated MCL 600.5781. The *statute mandates* that any judgment for possession "**must set forth the right of a tenant to sell a mobile home on-site, the conditions of that right, and the consequences of failure**" ³⁵ . If the District Court's eviction order did not contain those terms (and it likely did not, given what ensued), that itself is legal error; if it did, the landlord's actions are in contempt of that order. In either event, the Circuit Court (on equity side or appeal side) has a duty to ensure those rights are honored. At a minimum, the court should have immediately enjoined the landlord from moving/damaging the home and enforced Plaintiff's access rights when the issue was brought before it. The failure to do so is a failure to enforce a clear statutory duty in the administration of justice.

4. **Duty to Grant Temporary Injunction in Face of Irreparable Harm:** Courts are guided by well-established criteria when deciding whether to grant a preliminary injunction or TRO (Temporary Restraining Order). Those criteria include: (a) the likelihood that the party seeking relief will prevail on the merits, (b) the danger of irreparable harm if relief is denied, (c) the balance of harms (whether the harm to plaintiff absent an injunction outweighs the harm to defendant from an injunction), and (d) the public interest in issuing the injunction. Plaintiff submitted evidence and argument on each of these points to the trial court. *Every factor favored Plaintiff:* **(a)** success on the merits is likely because the facts, even as undisputed, show clear legal violations by Defendants (unlawful eviction tactics, etc.); **(b)** irreparable harm is ongoing – loss of one's dwelling and unique chattels, interference with parent-child relationship, and violation of constitutional due process rights cannot be fully remedied

by money damages later; **(c)** the balance of harms strongly favors an injunction, as it would merely require Defendants to *stop illegal actions* and maintain the status quo (they have no legitimate interest in continuing an unlawful lockout), whereas Plaintiff without injunction suffers compounding harm; **(d)** the public interest is served by upholding the rule of law, preventing self-help evictions, and protecting family housing stability ⁵ ³⁶ . In short, Plaintiff *amply satisfied* the requirements for interim injunctive relief under Michigan law (see *Detroit Fire Fighters Ass'n v City of Detroit*, 482 Mich 18, 34 (2008), listing these factors). The trial court's duty when presented with such a showing is to grant appropriate relief. If it had concerns over specifics, it could tailor the order, but doing nothing was not an option consistent with its duty. By failing to issue any TRO or preliminary injunction, the trial court effectively ignored the governing standard and left a meritorious motion unresolved. This Court should direct the trial court to grant the requested injunctive relief (as detailed in the Prayer below) or alternatively issue an injunction by its own order to prevent further harm pending full resolution.

5. **Duty to Hear and Decide Motions Promptly; Avoiding Obstruction of Justice:** The circuit judge also has a general duty under Michigan Court Rules to manage the case and decide motions in a prompt and fair manner. MCR 2.119(E) contemplates that courts will endeavor to decide motions (especially emergency motions) without unnecessary delay. Here, the record suggests that Judge Hoopes, rather than ruling on the emergency TRO, pushed for more information and then still did not convene a hearing or issue a decision even after supplementation. This foot-dragging in an emergency context breaches the court's duty to administer justice "without denial or delay" (Const 1963, art 1, §13 – right to a remedy). It may reflect an improper deference to the landlord or an arbitrary skepticism of Plaintiff's claims (despite verification). In either case, this lack of action is functionally equivalent to a *failure to exercise jurisdiction* – a classic ground for superintending control. A court's refusal to act when it should is as much an abuse of discretion as an erroneous act. This Court's superintending power exists to correct such situations, ensuring lower courts fulfill their obligations.

6. **No Adequate Alternate Remedy:** As noted, Plaintiff cannot obtain relief through ordinary appellate means in a timeframe that matters. The ordinary remedy for denial of a TRO would be to seek peremptory relief in the Court of Appeals, but here the trial judge has *not formally denied* the TRO – leaving Plaintiff in procedural limbo. Even if a constructive denial could be appealed, by the time briefs and arguments were done in the Court of Appeals, months would pass. Plaintiff's home could be destroyed or sold, his child's early years irretrievably marred by separation, and his own life permanently destabilized. Money cannot truly compensate for these losses, and a later victory would be hollow. The Court of Appeals, for its part, might decline to intervene mid-case (appellate courts often defer to trial courts in ongoing matters absent a clear abuse, which here is hard to demonstrate without an order on record). Thus, practically speaking, **this Court is the only forum that can provide effective relief**. Superintending control is designed for such extraordinary circumstances where "justice otherwise might be thwarted and no other relief is available" ⁴ ³ . Additionally, to the extent Plaintiff also intends to challenge the use of a defunct entity and the irregularities in the eviction process, those issues might not neatly fit an appeal record for months. Superintending control allows the Court to reach down and correct the process now. The Michigan Court of Appeals has noted that when a party lacks standing to appeal a certain issue (for example, a non-party victim, or here a party facing non-final orders), superintending control may lie ³² . In this case, Plaintiff lacks any other *standing* to stop the ongoing misconduct except through invoking this Court's power.

7. **Public Policy and Supervisory Interest:** Beyond Plaintiff's individual case, there is a broader interest in the Court ensuring that lower courts uniformly enforce anti-eviction laws and do not allow litigants to misuse judicial process. The facts here suggest an attempt by a large corporate landlord to take advantage of procedural technicalities (like a possibly expired corporate charter and confusion between district and circuit court phases) to dispossess a vulnerable tenant in a way that **evaded meaningful judicial scrutiny**. That implicates the judiciary's integrity. The **Michigan Judicial Institute's Benchbook on Landlord-Tenant Law** emphasizes the importance of the summary proceedings being conducted fairly and strictly according to statute, precisely because landlords might otherwise overreach ⁵ ³⁶ . If the trial court in this case failed to hold the landlord to those standards, it sets a dangerous example. This Court's superintending intervention will not only correct this case but also reaffirm to all courts that self-help evictions and procedural gamesmanship will not be tolerated. Superintending control exists for the Supreme Court to "enforce the supervisory power of a court over lower courts" ³⁷ and to ensure the "**prompt and fair administration of justice**" (MCR 3.302(A) ³⁷). That mandate is directly engaged here.

For all these reasons, Plaintiff has established a clear entitlement to superintending control relief. The trial court has failed to perform clear duties imposed by law, and Plaintiff has no other avenue to obtain timely justice ³ ¹² . We next specify the precise relief that Plaintiff requests this Court to order.

Relief Requested (Prayer for Relief)

Wherefore, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court issue an Order of Superintending Control (and any necessary accompanying writs) providing the following relief:

1. **Immediate Restoration of Possession:** An order **directing the Muskegon Circuit Court (Hon. Hoopes)** to immediately restore Plaintiff to possession of his manufactured home and lot at 1977 Whitehall Road, Lot 17. This shall include allowing Plaintiff to promptly re-enter the premises, removal of any padlocks or barriers installed by Defendants, and, if necessary, ordering the Muskegon County Sheriff (or other appropriate law enforcement) to assist in restoring Plaintiff to peaceful possession. This relief is justified under MCR 3.310 (injunctive relief) and MCL 600.2918(1) (forcible ejectment reversal) ²² ³⁴ . The trial court should be instructed to issue any further orders or use contempt powers as needed to enforce this restoration forthwith.
2. **Cessation of Interference – Injunction:** A **permanent injunction** (either issued by this Court directly or by the trial court on remand) prohibiting the landlord parties (Shady Oaks Park MHP LLC, Homes of America, and their agents) from engaging in any further self-help eviction tactics or interference with Plaintiff's possession. They must not dispose of, sell, damage, or withhold Plaintiff's home or personal property. They must cease any harassment or attempts to coerce Plaintiff to leave outside of lawful court process. In addition, affirmatively require Defendants to comply with all applicable **manufactured home park statutes and regulations** – including providing reasonable access, maintenance of utilities, and abatement of health hazards (e.g. sewage) as required by state agency directives – during the pendency of any further proceedings ³⁸ . This injunction protects Plaintiff and the public interest by ensuring the status quo of lawful behavior.
3. **Declaratory Relief on Legal Rights:** A declaratory judgment under MCR 2.605 confirming Plaintiff's rights and the limits of Defendants' authority, specifically declaring that: **(a) a writ of restitution for a leased lot does not** and did not authorize the landlord or its agents to seize, remove, or dispose of

Plaintiff's titled manufactured home or its contents – any such actions exceeded the scope of the summary proceeding and are ultra vires; **(b)** the use of a **dissolved or misnamed entity** (e.g. “Shady Oaks MHP, LLC” after dissolution) in legal proceedings is improper and, to the extent it was used to obtain court process, the resulting orders are void or voidable – the real parties in interest (Homes of America/Alden) cannot hide behind that name to avoid liability; **(c)** Plaintiff remains the lawful owner of the manufactured home and retains all associated statutory rights (including the 90-day post-judgment sale period) as if no improper eviction had occurred ⁶ ⁷ . These declarations will guide the lower court and parties on the law of the case and ensure any further trial-court proceedings honor these principles.

4. **Return of Property or Make-Whole Relief:** An order compelling Defendants to **return all of Plaintiff's personal property** that was removed during the eviction, in whatever form or location it may be. This includes household goods, personal effects, tools, and documents. If any property has been lost, destroyed, or sold, the court should order Defendants to pay the *full replacement value* of such items to Plaintiff. With respect to the manufactured home itself: if it has been moved off-site, it must be returned to Plaintiff's lot (or to a location of Plaintiff's choosing) at Defendants' expense; if it has been destroyed or otherwise cannot be recovered intact, Defendants should be ordered to compensate Plaintiff for its full market value (as of before removal) plus any consequential damages (such as loss of use of the home). This relief aligns with the remedies contemplated by MCL 600.2918(2) (owners who unlawfully interfere are liable for *actual damages* or \$200, and treble damages for forcible ejectment) ³⁹ ⁴⁰ – here, actual damages include the value of the home and contents.
5. **Accounting and Rent Ledger Relief:** An order directing the trial court to oversee a **forensic accounting** of Plaintiff's tenancy account. Specifically, the trial court should require Defendants to produce a full accounting of all charges, payments, and adjustments on Plaintiff's lot from the start of tenancy, *including* any deleted or altered ledger entries (with metadata). Because Plaintiff has raised credible allegations of ledger tampering (payments not credited, back-dated charges, unexplained increases), the Court may authorize the appointment of a neutral auditor or CPA under MRE 706 to examine Defendants' books ⁴¹ ⁴² . The trial court should also permit expedited discovery (via subpoenas, depositions of Defendants' bookkeepers, etc.) to get to the bottom of the ledger dispute ⁴² . In the interim, a **rollback of rent and charges to the last uncontested amount** should be ordered – meaning the rent should be deemed no higher than \$395 (the amount before the disputed increases) until the court adjudicates the proper amount. Any *unpaid rent* during the period of illegal lockout should be offset or tolled, since Plaintiff was prevented from occupying the premises. Additionally, because Defendants coerced Plaintiff into signing the “Ravenna/Cricklewood” agreement under duress, the Court should declare that document **rescinded or reformed** as necessary (i.e. it cannot be used as evidence of debt or admission of anything, given the circumstances) ¹⁸ ²⁰ . Finally, given evidence that Defendants deleted portions of the ledger (such as prior payment history) when Plaintiff began disputing it, the court should impose **spoliation sanctions** – e.g. an adverse inference that any missing ledger data would have been favorable to Plaintiff's position, and reimbursement of Plaintiff's fees for having to uncover this issue ⁴² .
6. **Damages to be Addressed by Trial Court:** A directive that the trial court proceed to adjudicate Plaintiff's claims for money damages in an *expedited* fashion once the immediate injunctive and property-return issues are addressed. Plaintiff has claims for **treble damages** under two statutes – MCL 600.2918 (anti-lockout, treble actual damages) and MCL 600.2919a (conversion, statutory treble

damages plus attorney fees) ⁴³ ⁴⁴ – as well as claims for compensatory damages (for property loss, alternate housing costs, etc.), non-economic damages (for emotional distress and loss of familial rights), and punitive/exemplary damages (to sanction malicious conduct). This Court need not liquidate those amounts, but it should instruct the trial court that Plaintiff is entitled to pursue them and that any *attempts by Defendants to evade liability through corporate shell games will not be tolerated*. Notably, Michigan law permits **exemplary damages** in cases of intentional tort where the defendant's conduct was malicious or willful, as alleged here (e.g. *Kewin v Massachusetts Mutual*, 409 Mich 401 (1980), acknowledging exemplary damages to compensate indignity and humiliation). Likewise, if the trial court finds the eviction was retaliatory or in bad faith, it may award appropriate relief beyond actual damages. The Court should also explicitly note that **attorney fees** are available under MCL 600.2919a for statutory conversion and should be awarded if Plaintiff prevails on that count.

7. Judicial Reassignment (if needed): Although Plaintiff has not made a formal motion to disqualify in the lower court, he has raised concerns about Judge Hoopes's handling of the case. If this Court, upon review, shares the concern that Judge Hoopes cannot (or will not) fairly and expeditiously handle the matter on remand, the Court could order that the case be reassigned to a different judge (for example, the Chief Judge of the circuit or another judge by special assignment). This would fall within the Court's superintending authority to "exercise... control over the judiciary" ⁴⁵ and ensure impartial adjudication. However, Plaintiff defers to the Court's judgment on this point. The primary goal is substantive relief; if the Court trusts that clear instructions to Judge Hoopes will suffice, Plaintiff is prepared to proceed under those instructions.

8. Any Other Relief Appropriate to Serve Justice: Plaintiff requests **any further or different relief** that the Court deems just and proper to fully resolve the issues. This includes, but is not limited to, orders correcting public records that may have been tarnished by this incident (for instance, if an eviction was reported to tenant screening databases or credit bureaus, an order could declare that record nullified given the unlawful nature of the proceedings) ⁴⁶. It also includes ensuring that if Plaintiff chooses to move his home to a new location, Defendants cannot impede that process. In essence, the Court should use its broad equitable power to **place Plaintiff as nearly as possible in the position he would have been absent Defendants' wrongful acts**, and to do so in a manner that discourages Defendants (and others) from similar misconduct in the future ⁴⁷.

Verification: Pursuant to MCR 1.109(D)(3) and MCR 2.114(B), Plaintiff verifies that the factual statements in this Complaint are true to the best of his knowledge, information, and belief. All factual allegations have evidentiary support or are likely to have such support after reasonable opportunity for investigation. (See attached Exhibit A, Sworn Affidavit of Andrew J. Pigors, for a full verified statement of facts, incorporated herein.)

I declare under the laws of the State of Michigan that the foregoing is true and correct. ⁴⁸

Date: October 29, 2025 – Muskegon, Michigan

Andrew J. Pigors, Plaintiff (Pro per)

Exhibit A: Sworn Affidavit of Andrew J. Pigors (incorporated by reference) – *Detailed narrative of facts with supporting evidence citations.*

Exhibit B: Relevant Legal Authorities Index – *Compilation of key statutes, rules, and cases supporting the claims (for the Court's convenience).*

Exhibit C: [Proposed] Order for Immediate Possession and Injunctive Relief – *Draft order restoring possession and enjoining unlawful conduct, for the Court's consideration.*

Exhibit D: [Proposed] Order for Accounting and Further Proceedings – *Draft order setting accounting protocols and scheduling expedited proceedings in circuit court.*

Sources Cited: Michigan Court Rules (2025 ed.), Michigan Judicial Institute Benchbooks, and Michigan Compiled Laws, including but not limited to: MCR 3.302, 7.306 ³ ⁴⁹ ; MCR 1.109 and 2.113 (format and verification requirements) ⁵⁰ ⁴⁸ ; MCR 2.003 (judicial disqualification standards) ³⁰ ; MCR 2.605 (declaratory judgments) and 3.310 (injunctions); MCL 600.2918 (anti-lockout law) ⁵ ²¹ ; MCL 600.5775, 600.5781 (mobile home park just-cause eviction and 90-day sale period) ⁶ ⁷ ; *In re Hague*, 412 Mich 532 (1982) ¹² ; *In re Gosnell*, 234 Mich App 326 (1999) ³ ; and others as referenced in context above. Each of these authorities confirms the propriety and necessity of the relief here requested.

¹ ² ⁸ ²⁹ COMPLAINT_ADDENDUM_JUDGE_HOOPES_RESPONSES_AND_ESCALATION.docx
<https://drive.google.com/file/d/1AKEpOZIEIxmE21Efj-aY4ZQt0afvwFa>

³ ⁴ ¹² ³² ³³ ³⁷ civilbb.pdf
file:///file_0000000023e461f5bfc6c7ff1ae4c96c

⁵ ⁶ ⁷ ²¹ ²² ²³ ³⁴ ³⁵ ³⁶ ³⁹ ⁴⁰ lltb.pdf
file:///file_000000007bb0620e95f8e74643f0b71b

⁹ ¹⁰ ¹¹ ⁴⁵ ⁴⁹ ⁵⁰ michigan-court-rules.pdf
file:///file_00000000e23c620ca270cb60d48c2d32

¹³ ¹⁴ ¹⁵ ¹⁶ ¹⁷ ⁴³ ⁴⁴ Pigors_Complaint_Packet_with_Exhibits_A_B.pdf
https://drive.google.com/file/d/1sNUIUicVqFICjL1bKh_ulsSvXnf7uB-1

¹⁸ ²⁵ ²⁷ Pigors_Complaint_Packet_Affidavit_and_Proposed_Order (1).docx
https://drive.google.com/file/d/1NLBdS9DnynrhLMh_xzub5-gAb0dA-0JQ

¹⁹ ²⁰ ²⁴ ²⁶ ²⁸ ³⁸ ⁴¹ ⁴² ⁴⁶ ⁴⁷ ⁴⁸ Complaint_v2_Pigors_with_Exhibits_A_to_D (1).docx
https://drive.google.com/file/d/1RWUy5-MM_OKPtr3GsoQtLl_9-ah2EIMK

³⁰ ³¹ jdq.pdf
file:///file_00000000175061f595e96c331ed37f06